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BILTT: Email retention

1 message

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To: Paula Burgess <paula.burgess@biltt.org>, Paul Panter <paul.panter@biltt.org>

Bcc: Tammy Buchanan <tammy.buchanan@dataprotection.education>

Hi both,

Please find below email retention information as discussed:

The decision on the time periods for each type of mailbox (listed below) depends on the organisation and should be decided by the SLT of the organisation. Once the time periods for data retention are decided then staff will need to be advised. Giving staff a couple of months to get used to the idea and file anything they need to. Choose a specific date and advise staff that from X date, the retention periods for the deleted folder will be Y so from that date deleted emails will either be permanently deleted or moved to archive for X time period.

Remind staff:

The Sent and Deleted folders are not for filing and will have shorter retention periods naturally. They should be advised on how best to store important information - remind staff that email is a communications tool and not a database and it may be that if, for example, the relevant safeguarding information is held in a designated software tool, then copies of the emails do not also need to be kept in a person's mailbox.

Decide organisational retention periods for:

- Sent Folder
- Deleted Folder
- Inbox (remind staff to either file or delete items and not necessarily use the inbox for filing and check for what purpose they are keeping that information). Remind them of the Data Protection Principles:

- Lawfulness, fairness and transparency
- Purpose limitation
- Data minimisation
- Accuracy
- Storage limitation
- Integrity and confidentiality (security)
- Accountability

Consider if SLT/Central team or other staff members (or shared mailboxes for job roles) might benefit from alternative retention periods.

Further information is available in this article:

<https://dataprotection.education/best-practice-update/226-email-and-retention-periods-5>

Regarding whether you need to search a backup for SAR information. The ICO specifically mentions this and says: The process of accessing electronically archived or backed-up data may be more complicated than the process of accessing 'live' data. However, there is no 'technology exemption' from the right of access. You should have procedures in place to find and retrieve personal data that you have electronically archived or backed-up.

I spoke to James about this and he said that he would consider it generally excessive to recover from data backups and that it may be open to inaccuracies, but it does mean you should consider what you are backing up and how long for.

As mentioned previously retention schedules for all types of files held in school are listed in the iRMS toolkit:

<https://irms.org.uk/page/SchoolsToolkit>

There is also guidance in the DfE document: Data Protection in Schools: <https://www.gov.uk/guidance/data-protection-in-schools/data-retention>

I've attached the Data Retention Workshop slides document which also has some useful information.

Many thanks,

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